

Form No.HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No. 69895-B/2025

Syed Abdul Mannan Vs. The State and another

No. of order/ proceeding	Date of order/ proceeding	Order with the signature of the Judge, and that of parties or counsel, where necessary
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28.01.2026 Mr. Muhammad Usman Bhatti, Advocate, for the
Petitioner.
Mr. Muhammad Nasim Saqlain, Assistant Attorney General
with Abdul Basit SI.
Mr. Muhammad Nawaz Sheikh, Advocate, for the
Informant.
Mr. Muhammad Abid, Research Officer, LHCRC.

Tariq Saleem Sheikh, J. – Through this application,
the Petitioner seeks post-arrest bail in case FIR No. 57/2024 dated
05.04.2024, registered at Police Station FIA Cyber Crime Wing,
Lahore, for offences under sections 295-A, 295-B, 295-C, 298-A and
109 PPC, and section 11 of the Prevention of Electronic Crimes Act,
2016 (PECA).

2. Briefly stated, the prosecution case is that the Informant
was added to two WhatsApp groups, namely R.K. and M.B.
(full descriptions withheld). According to him, he noticed that
various members of those groups were sharing blasphemous and
sacrilegious posts. He preserved screenshots of some posts and
lodged a complaint with the FIA Cyber Crime Wing, Lahore,
whereupon Inquiry No. 940/2024 dated 04.04.2024 was registered.
During that inquiry, the FIA received another complaint regarding
the same WhatsApp groups, which was merged with the Informant’s
complaint. The Inquiry Officer found that the Petitioner had
uploaded, shared and disseminated the offensive content, and on that
basis FIR No. 57/2024 was registered.

3. Mr. Muhammad Usman Bhatti, Advocate, contends that
the Petitioner is innocent and that the Informant has falsely
implicated him in this case for ulterior motives. He submits that the

prosecution has not shown that the Petitioner was the creator or administrator of the WhatsApp groups R.K. and M.B. According to him, the Petitioner's alleged connection with those groups is founded only upon membership and recovery of a cellphone, which, by itself, does not establish that he uploaded, shared or disseminated the offensive content. He argues that, even at the stage of post-arrest bail, the prosecution must show, at least *prima facie*, that the relevant WhatsApp account, phone number, SIM or offending posts are attributable to the Petitioner. He further submits that the Petitioner was arrested on 08.04.2024 and his Vivo Y22 cellphone was seized on the same day, whereas the Technical Analysis Report was prepared after more than five weeks. During this period, the device remained in the technical analyst's custody and was susceptible to misuse. He maintains that the prosecution has not produced sufficient evidence to show that the cellphone was sealed at the time of seizure, kept in safe custody, transmitted for analysis through a proper chain of custody, and received by the technical analyst in sealed condition. He argues that the Technical Analysis Report cannot safely be relied upon and that the case calls for further inquiry within the meaning of section 497(2) Cr.P.C., which entitles the Petitioner to bail.

4. Mr. Muhammad Nasim Saqlain, Assistant Attorney General, assisted by the Informant's counsel, Mr. Muhammad Nawaz Sheikh, Advocate, has opposed this application. He submits that the allegations against the Petitioner are not based merely on his membership of the WhatsApp groups. According to him, six accused persons, including the Petitioner, were arrested during the inquiry, and their cellphones were seized. The Petitioner's Vivo Y22 cellphone was sent for technical analysis. He maintains that the Technical Analysis Report dated 17.05.2024 specifically connects the Petitioner with the uploading, sharing and dissemination of the offending content. He vehemently denies that the safe custody of the cellphone was compromised or that anything was planted or

introduced into the device after its seizure. He prays for the dismissal of this application.

5. Arguments heard. Record perused.

6. The Petitioner is accused of circulating sacrilegious posts in two WhatsApp groups. According to the prosecution, the Informant preserved screenshots of some of those posts and lodged a complaint with the FIA Cyber Crime Wing. Copies of those screenshots are available in the record produced before this Court during the hearing of this application. The prosecution maintains that those posts attract sections 295-A, 295-B, 295-C and 298-A PPC. The issue, so far as the present case is concerned, is whether the evidence collected during the investigation reasonably connects the Petitioner with the circulation of the offending content through WhatsApp, or whether the case calls for further inquiry within the meaning of section 497(2) Cr.P.C.

7. PECA provides the statutory framework within which the above issue must be examined. It was enacted “to prevent unauthorised acts with respect to information systems and to provide for related offences as well as mechanisms for their investigation, prosecution, trial and international cooperation.”¹ It is necessary to refer to certain definitions in PECA. Clause (xv) broadly defines “device” to include a physical device or article, any electronic or virtual tool not in physical form, a password, access code or similar data by which any part of an information system is capable of being accessed, and automated, self-executing, adaptive or autonomous devices, programmes or information systems. Clause (xx) defines “information system” to mean an electronic system for creating, generating, sending, receiving, storing, reproducing, displaying, recording or processing information. These definitions show the broad statutory scope of the expressions “device” and “information system” in PECA. Liability arising from the use of such a device or

¹ Preamble, Prevention of Electronic Crimes Act, 2016 (Act No. XL of 2016).

system must be examined with reference to the specific statutory offence alleged.

8. Section 11 of PECA provides that whoever *prepares or disseminates* information, through any information system or device, that *advances or is likely to advance* interfaith, sectarian or racial hatred shall be punished with imprisonment which may extend to seven years or with fine or with both. This provision accordingly requires three matters to be considered: first, whether the information falls within the mischief contemplated by the section; secondly, whether it was prepared or disseminated through an information system or device; and thirdly, whether the act of preparation or dissemination is voluntary and attributable to the accused. Although section 11 does not use the word “intentionally”, the acts of preparing and disseminating information are, by their nature, volitional acts. Nothing in the language of the provision suggests that criminal liability may arise from accidental, involuntary or merely passive receipt of information. In the context of a WhatsApp group, uploading, forwarding, sending, sharing, storing for onward transmission or otherwise circulating the offensive content may, where the other ingredients of the offence are also satisfied, fall within the ambit of section 11.

9. The FIR also invokes section 109 PPC, which creates criminal liability for abetment. Under the PPC, a person abets the doing of a thing if he instigates any person to do that thing, engages with one or more other persons in any conspiracy for the doing of that thing, or intentionally aids, by any act or illegal omission, the doing of that thing. Abetment requires evidence of one of these three specific forms of participation. For this reason, mere creation or administration of a WhatsApp group, or mere membership of it, does not, without more, constitute abetment. Criminal liability under section 109 PPC, whether read with PECA or with the PPC offences mentioned in the FIR, must rest on an identifiable act or legally relevant omission attributable to the accused, accompanied by the requisite intention.

10. *The Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2021* (the “2021 Rules”), made under PECA, also form part of the regulatory regime. They deal with complaints, the blocking or removal of unlawful online content, the obligations of service providers, social media companies and significant social media companies, and cooperation with the Authority or the investigation agency. They do not create a separate penal offence against every creator, administrator or member of a WhatsApp group, nor do they dispense with the requirement that the prosecution must establish the ingredients of the offence charged. Similarly, section 38 of PECA relates to service providers and does not directly govern the liability of a WhatsApp group creator, administrator or member. The Rules are relevant only to show the regulatory framework in which online content is dealt with. They do not alter the requirement that criminal liability must rest on a statutory offence and on conduct attributable to the accused.

11. Mr. Bhatti’s contention that mere membership of a WhatsApp group, or recovery of a cellphone, does not establish dissemination requires the Court to distinguish between status-based liability and act-based attribution. In this context, certain decisions of the Indian High Courts may be noticed. It must, however, be stated at the outset that those cases arose under different statutory provisions, primarily the Information Technology Act, 2000, the Indian Penal Code, and the Protection of Children from Sexual Offences Act, 2012. In any event, they have only persuasive value for the courts in Pakistan. With that caveat, in ***Kishor v. The State of Maharashtra and another*** [(2021) 2 AIR Bom R (Cri) 574], the Bombay High Court held that a WhatsApp group administrator has only limited power to add or remove members and has no power to regulate, moderate or censor messages before they are posted. It further held that, in the absence of a specific penal provision creating vicarious liability, an administrator cannot be held liable for objectionable posts made by a member unless common intention or a

pre-arranged plan is shown, and that common intention cannot be established merely from the fact that a person is acting as a group administrator. It is pertinent to note that the Court did not examine the liability of an administrator who himself creates or posts objectionable content, as that issue did not arise on the facts before it.

12. In ***Manual v. State of Kerala***, 2022 LiveLaw (Ker) 97,² the Kerala High Court considered the liability of the creator and administrator of a WhatsApp group where the objectionable content was posted not by an ordinary member, but by another administrator of the same group. The Court held that, in the absence of a special penal provision creating vicarious liability, a WhatsApp group administrator cannot be held liable merely because of that status. It further held that an administrator cannot be treated as an intermediary under the Information Technology Act, 2000, has no master-servant or principal-agent relationship with the members, and has no power to moderate or censor messages posted in the group. The Court also observed that the prohibited act must be accompanied by the *mens rea* required by law to constitute an offence. On the facts, the proceedings against the petitioner were quashed because there was no evidence to show that he had published, transmitted, caused to be published or transmitted, browsed, downloaded or otherwise facilitated the offending material, or acted in concert with the person who posted it.

13. In ***Ashish Bhalla v. Suresh Chawdhary and others*** (2016 SCC OnLine Del 6329), the Delhi High Court considered, in a civil defamation context, whether the administrator of a Telegram and Google Group could be made liable for defamatory content posted by a member. The Court held that he could not, observing that such liability would be comparable to making the manufacturer of newsprint liable for defamatory material printed upon it. This was a civil defamation case, not one concerning criminal liability, and the

² https://www.livelaw.in/pdf_upload/manual-v-state-of-kerala-410526.pdf

principle drawn from it is relevant only for the broad proposition that mere creation or administration of an online platform does not, without more, create liability for the acts of other participants.

14. The same distinction is reflected in ***Zaheer Ahmad and another v. The State and others*** (2022 SCMR 1477).³ In that case, the Supreme Court of Pakistan refused bail in a matter arising out of a WhatsApp group in which proscribed material was allegedly shared. The refusal of bail did not rest solely on the accused's status as an administrator. The Court noticed the alleged purpose of the group, the sharing of that content, the role attributed to the accused in adding and removing members, the alleged instructions of a co-accused, and the forensic analysis of the cellphones. This case illustrates that criminal liability in relation to a WhatsApp group must rest on evidence connecting the accused with the alleged act, purpose, common intention or dissemination, and not on status alone.

15. In ***Muhammad Javed Memon v. The State*** (2024 SHC KHI 902), the Sindh High Court drew a distinction between private one-to-one WhatsApp communication and posts shared in a WhatsApp group accessible to its members. The Court observed that offences under sections 20 and 21 of PECA contemplate the intentional and public exhibition, display or transmission of the offending content, whereas private WhatsApp messages exchanged between two individuals are end-to-end encrypted communications accessible only to the sender and the recipient. In reaching this conclusion, the Court relied upon *Nivrutti Hariram Gaikwad v. State of Maharashtra and another*.⁴

16. *Nivrutti*, however, must be understood in its proper context. The case arose from a matrimonial dispute in which the husband had allegedly sent abusive WhatsApp messages to his wife

³ The judgment arose from and affirmed the order of this Court dated 24.12.2021 in Crl. Misc. No. 27057-B/2021, reported as *Zaheer Ahmed v. The State etc.* (2021 LHC 8499 : PLJ 2026 Cr.C. 457).

⁴ AIRONLINE 2020 BOM 237

and was prosecuted under sections 294, 500, 506 and 507 of the Indian Penal Code (IPC). Section 294 IPC criminalises obscene acts or obscene words in or near a public place. The Bombay High Court held that private WhatsApp messages exchanged between two individuals are personal, end-to-end encrypted communications and, therefore, cannot be regarded as utterances made in a public place. The FIR was accordingly quashed only to the extent of section 294 IPC. The Court also observed that the evidence on record disclosed a *prima facie* case under section 509 IPC, which had not featured in the original FIR, and left the investigating agency at liberty to examine that aspect. The ratio of *Nivrutti* is thus narrow: a private one-to-one WhatsApp exchange does not satisfy the statutory requirement of a “public place” under section 294 IPC. It neither lays down a general proposition regarding WhatsApp as a medium of communication nor addresses criminal liability arising from the content of messages under other statutory provisions.

17. The question is whether *Memon* was justified in relying upon *Nivrutti*. The offences in *Memon* were under sections 20, 21 and 24 of PECA. Sections 20 and 21 expressly require that the offending information be exhibited, displayed or transmitted “intentionally and publicly.” To that extent, *Memon* correctly concluded that a private one-to-one WhatsApp exchange falls outside their scope. However, the Court reached that conclusion by importing from *Nivrutti* the concept of a “public place” and treating it as analogous to the word “publicly” in sections 20 and 21. With respect, the two concepts are distinct. A “public place” refers to the place where the words are uttered, whereas “publicly” concerns the reach and audience of a digital communication. The conclusion reached in *Memon* is, to that extent, supported by the text of sections 20 and 21 themselves, as a private one-to-one WhatsApp exchange cannot ordinarily be regarded as a communication made “publicly.” Nevertheless, because the Court drew upon the distinct concept of a “public place” discussed in *Nivrutti* in reaching that view, caution may be required before treating *Memon* as determinative of the

meaning of “publicly” in every factual context arising under those provisions.

18. The present case relates to section 11 of PECA rather than sections 20 or 21. The distinction is material. Sections 20 and 21 expressly require that the offending information be exhibited, displayed or transmitted “intentionally and publicly.” Section 11 contains no such requirement. This omission is significant. Within the same statute, the legislature expressly included the phrase “intentionally and publicly” in sections 20 and 21 but omitted it from section 11, indicating a deliberate choice that the offence under section 11 should not depend upon proof that the dissemination was public. The distinction is reinforced by section 26A of PECA, inserted through the Prevention of Electronic Crimes (Amendment) Act, 2025, which separately refers to “disseminates”, “publicly exhibits” and “transmits”, thereby treating dissemination and public exhibition as distinct concepts. Section 26A is not applicable to the present case, as it was inserted subsequently and creates a distinct offence. It follows that the reasoning in *Memon*, which derives its force from the express “publicly” requirement in sections 20 and 21, cannot be transposed to section 11. The real question under section 11 is not whether the dissemination was public, but whether information was prepared or disseminated through an information system or device in a manner that advances, or is likely to advance, interfaith, sectarian or racial hatred, and whether the alleged act is voluntary and attributable to the accused. Whether transmission to multiple recipients amounts to dissemination will depend on the facts of each case, including the number of recipients, the accused’s role in originating or forwarding the information, and the purpose or intention behind the transmission. As the present case concerns circulation within WhatsApp groups, it is unnecessary to determine the precise limits of that concept at this stage.

19. Having considered the statutory provisions and the relevant case law, the liability of a person in relation to posts circulated in a WhatsApp group may, for analytical clarity, be

examined in the following categories. These are not rigid compartments but a means of identifying the role attributed to the accused and testing it against the elements of the alleged offence. The first three categories are directly relevant to the distinction between status-based liability and direct attribution which arises in the present case. The remaining two are addressed for completeness, as they may arise in cases of this nature, but do not require determination here.

20. *Creator or Administrator.* Mere creation or administration of a WhatsApp group does not, by itself, make the creator or administrator criminally liable for every post made by its members. A WhatsApp administrator may have the power to add or remove participants, but he does not ordinarily review, moderate or approve each message before it is posted. Vicarious criminal liability cannot be inferred merely from administrative status. Liability may, however, arise where the group is created for an unlawful purpose, where the administrator himself participates in the circulation of such content, facilitates or encourages its circulation, acts in concert with others, or where common intention, conspiracy or abetment is shown from the evidence collected during the investigation.

21. *Ordinary member.* Mere membership of a WhatsApp group, passive receipt of content, continued presence in the group, or failure to leave it does not constitute preparation, dissemination or abetment for the purposes of section 11 of PECA or section 109 PPC. Criminal liability must rest on an identifiable act or legally relevant omission attributable to the member, and the intention or knowledge required by law. Such an act may include uploading, forwarding, sharing, soliciting, storing for onward transmission, or otherwise intentionally participating in the circulation of the offensive content.

22. *Actual uploader, forwarder or disseminator.* A person who personally uploads, forwards, sends, shares, or otherwise circulates the offending content stands on a different footing from a

mere creator, administrator, or member of a WhatsApp group. In such a case, liability is founded on the accused's own act, not on vicarious responsibility for the act of another.

23. *Reactions, approval or expressions of agreement.* A mere emoji, brief reaction, or expression of agreement in a WhatsApp group should not, by itself, be treated as preparation or dissemination. Whether such conduct amounts to abetment by instigation, conspiracy or intentional aid under section 109 PPC would depend on the statutory offence alleged, the surrounding circumstances, the nature of the reaction, and the prior or subsequent conduct of the accused. Since no such issue arises directly in the present case, it is unnecessary to examine it any further.

24. *Failure to remove content and failure to act.* Unless a statute imposes a duty to act, omission cannot readily be converted into criminal liability. Mere failure by an administrator to remove objectionable content, without more, does not amount to dissemination or abetment. Such inaction may become evidentially relevant when considered with other circumstances showing conscious facilitation, encouragement, common intention, conspiracy, abetment or intentional participation, or where a statutory duty to act exists. It would be unsafe to treat an administrator's silence or inaction as dissemination in the absence of some other legally relevant circumstance. Each case must turn on its own facts.

25. Reverting to the facts of the present case, the Petitioner is accused of circulating blasphemous and sacrilegious posts in two WhatsApp groups. On 08.04.2024, he was arrested, his Vivo Y22 cellphone was seized, and it was sent for technical analysis. The Technical Analysis Report dated 17.05.2024 states that the Vivo Y22 cellphone was attributed to the Petitioner, that three WhatsApp accounts were found active on it, and that the offending content allegedly shared through WhatsApp was found stored in the WhatsApp backend "sent" folder of that cellphone. The prosecution,

therefore, does not rest its case merely on the Petitioner's membership of the WhatsApp groups.

26. Mr. Bhatti's contention that the prosecution has failed to attribute the WhatsApp account, phone number, SIM or offending posts to the Petitioner is not tenable because the Technical Analysis Report, discussed in the preceding paragraph, does not bear it out. True, the presence of content in a "sent" folder alone does not conclusively establish that the registered user or possessor of the device personally sent it. The device is, however, shown to have been taken into possession from him. At this stage, the Petitioner has not suggested that any other person had access to or used the cellphone.

27. Mr. Bhatti also requested the reliability of the Technical Analysis Report. His objection is founded on the interval between seizure of the cellphone and the preparation of the report. He pointed out that the cellphone was seized on 08.04.2024, whereas the report was prepared on 17.05.2024, and submitted that, during this period, the device remained with the technical analyst and was susceptible to misuse. At the bail stage, this objection has to be examined against the record presently available regarding safe custody and chain of custody. The gap between seizure and the report is a little over five weeks. Mere lapse of time, however, does not, by itself, establish that a device has been tampered with or accessed without authority. The Technical Analysis Report also records that the mobile phones were received by the technical analyst in sealed condition and through a chain-of-custody form. No independent circumstance has been shown to demonstrate that the device was tampered with, accessed unauthorisedly, or used after seizure to introduce offending content.

28. On a tentative assessment, there is sufficient incriminating evidence against the Petitioner. He has not made out a case for further inquiry contemplated by section 497(2) Cr.P.C. In ***Shahzaman and others v. The State and another*** (PLD 1994 SC

65), the Supreme Court explained that what constitutes “sufficient grounds for further inquiry” depends upon the peculiar facts of each case and that no hard and fast rule can be laid down. It was further held that every hypothetical question capable of being answered by the trial court after evaluation of evidence does not make out a case of further inquiry. The question must have a nexus with the ultimate result and should show, or tend to show, that the accused may not be guilty of the offence charged. In the present case, these conditions are not satisfied.

29. For the above reasons, this application is **dismissed**.

30. The observations made herein are tentative and confined to the disposal of this bail application. The trial court shall decide the case independently, on the basis of the evidence brought before it, without being influenced by any observation contained in this order. Since the Petitioner is in custody, the trial shall be expedited.

(Tariq Saleem Sheikh)
Judge

Ahsan

Approved for reporting

Judge